

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

October 28, 2019

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Ken Esquibel, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Roybal moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on October 14, 2019. Motion (per Consent Agenda) carried.

No action was taken on the vouchers as presented. James Johnson inquired about a bottomline total voucher figure. Robin Lockman, City Treasurer, advised the entire voucher listing is available for public viewing on the city’s website. Michael O’Donnell, City Attorney, explained the new process is a motion to approve the accuracy of the voucher report that will be adopted with the new ordinance.

Mr. Case moved to suspend the rules to allow for consideration to reconsider a contract modification to Contract #7026 with Simon Contractors for the 2019/2020 Miscellaneous Street Repair Project, seconded by Mr. Cook. Mayor Orr advised the motion is not debatable. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no”. Mr. Case advised that since approval at the October 14, 2019 City Council meeting of Modification #1 to Contract #7026 with Simon Contractors for the 2019/2020 Miscellaneous Street Repair Project, additional information has been received. Mr. Case moved to reconsider the contract modification, seconded by Mr. Shanor. Mike O’Donnell, City Attorney, explained that since the contract modification was approved 2 weeks ago, concerns have been received by citizens. Tom Cobb, City Engineer, explained the reason for the modification change order is due to safety concerns related to oil in the overlay product on Nationway. He re-evaluated the project due to impending weather concerns and based on that, he looked at contingencies on moving forward next summer and possibly milling portions of the road. During re-evaluation of the pavement, it was determined the pavement had healed itself and isn’t an immediate safety concern. Upon inquiry, Mr. O’Donnell confirmed that if project rehabilitation is needed next spring, a bid will be opened in the future. Mr. Cobb explained rehabilitation will be necessary as current conditions won’t be long lasting and advised his recommendation is the project can be delayed.

Gay Woodhouse, Attorney representing STC Construction, provided concerns about the change order stating the original work was completed on Nationway in 2018 and in order to do more work in the area, it should be considered a new project which would go out to bid. Ms. Woodhouse provided a handout related to bid requirements in state statutes and reviewed the information. She explained particular products were increased in the change order without reasoning, work should be done under warranty since it appears the product failed and the additional work is almost double the original amount of the project. Ms. Woodhouse spoke about the bid process and asked that the bid be dismissed and re-opened before the start of the project. Glenn Nicholson, Simon Contractors, explained the failure was not related to workmanship and advised it is not a warranty issue. Mr. Nicholson explained the City Engineer's office approved a 1.5" mil overlay on the surface which is contrary to the normal 2" mil overlay. He inquired as to how the Civic Center Commons parking lot project for the municipal building was awarded. Comment was made on the chip seal program and maintaining and re-evaluating Nationway repairs. Motion to reconsider carried. Voting "yes" – all members of the governing body. Mr. Case moved to postpone to 11/12/19, seconded by Mr. Luna. Motion to postpone carried. Voting "yes" – all members of the governing body.

ORDINANCE – 3rd READING – Amending Chapter 2.04, Mayor and City Council, within Title 2, Administration and Personnel, and Chapter 3.04, Fiscal Provisions Generally, within Title 3, Revenue and Finance, of the Municipal Code of the City of Cheyenne, Wyoming. Joe Dougherty commented on proposed changes regarding the voucher approval process, opposing approval as to accuracy only. Mayor Orr clarified members of the public are allowed to comment during public comment periods, however, she will not allow questioning staff from the podium. She advised members of the public can ask questions and staff will provide responses in writing. James Johnson supported voucher approval as to accuracy and advised the State takes a sample of transactions and tests them for accuracy. Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Mr. Shanor. Mr. White moved to amend Sections D (4) and D (6) by changing \$25,000.00 to \$35,000.00, seconded by Mr. Laybourn. Mr. Shanor advised he had previously provided information on the topic to Mr. Dougherty in an email and spoke against increasing the amount to \$35,000.00. It was requested consideration be given for not changing the bid threshold. Comment was made that members of the governing body have been informed that payment of vouchers can't be disapproved and the contract process is fiscal oversight. Upon inquiry, Robin Lockman, City Treasurer, explained the process of placing an item on the agenda that the Purchasing Manager must follow. Ms. Lockman advised it is estimated the proposed amendment would add an estimated additional 26 items per year to the agenda and explained procurement types determine if a contract is needed and that purchase orders are only used in certain instances. TJ Barttelbort, Purchasing Manager, explained the current process of purchasing a piece of equipment and advised that with the new proposal, a formal contract would be required. Mr. O'Donnell clarified that a purchase order is a contract and tends to run below the dollar amount threshold. Mr. Barttelbort provided additional information relating to equipment purchases and the bid process. Upon request, Kris Jones, City Clerk, read the amendment language. Discussion continued on the proposed process, relationship between City Council and the Mayor, the current legal opinion that the governing body does not have the authority to deny a voucher, contract approval process oversight and opposition of the amendment. A point of order was raised by Mr. Laybourn relating to appropriate procedure on postponing an item on 3rd reading.

Mayor ruled the point is well taken and requested clarification on postponing before the amendment is voted on. Mr. O'Donnel advised the amendment motion must be disposed of prior to a motion to postpone. Motion to amend failed due to a tie vote. Voting "yes" – Mayor Orr, Mr. Esquibel, Mr. Laybourn, Mr. Roybal and Mr. White. Voting "no" – Mr. Case, Mr. Cook, Mr. Luna, Dr. Rinne and Mr. Shanor. Mr. Cook moved to postpone to 11/12/2019, seconded by Mr. Case. Upon inquiry, Mr. Bartelbort advised he would provide additional information relating to clarification on professional services and contracts prior to the 11/4/2019 Finance Committee meeting. Comments were made opposing the motion to postpone. Motion to postpone carried. Voting "yes" – all members of the governing body with the exception of Mr. Esquibel and Mr. Roybal voting "no".

[CA] RESOLUTION – Re-appropriating the fiscal year 2020 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 & 16-4-113 – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – To adopt the Certificate of Canvass and Declaration of Results of the Canvassing Board for the Cheyenne Downtown Development Authority District Special Election held October 16, 2019 – referred to Finance Committee. (Sponsor – Mr. White)

[CA] Purchase and Sale Agreement between John J. LaFond and the City of Cheyenne for the purchase of real property located at 3425 Christensen Road, in the City of Cheyenne, Laramie County, Wyoming, for the appraised value of \$455,000.00. Motion (per Consent Agenda) carried (in an amount not to exceed \$455,000.00). (#7098)

[CA] Spectrum Enterprise Service Agreement between the City of Cheyenne and Charter Communications Operating, LLC. Motion (per Consent Agenda) carried. (#7099)

[CA] Grant Agreement between the City of Cheyenne, Police Department, and Wyoming Association of Sheriffs and Chiefs of Police-Wyoming Department of Transportation-Highway Safety Grants Program for selective traffic enforcement grant. Motion (per Consent Agenda) carried (revenue to the City). (#7100)

[CA] 2019-2020 Collective Labor Agreement between the City of Cheyenne and Cheyenne Firefighters, Local Union No. 279, International Association of Firefighters – referred to Finance Committee.

[CA] Land Purchase and Sale Agreement between the City of Cheyenne and Victory Real Estate Management, LLC, for the purchase of real property described as a portion of Lot 1, Block 1, P.A.S. Subdivision, City of Cheyenne, Laramie County, Wyoming, for the appraised value of \$329,630.00, for economic development purposes (General Fund) – referred to Finance Committee.

[CA] Grant Award Agreement between the City of Cheyenne, Police Department, and the Wyoming Office of Homeland Security for the purchase of a robot platform to support missions in explosive device detection, mitigation and remediation – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #6963 between the City of Cheyenne and AVI, P.C., Cheyenne, for engineering design and construction management services for the Allison Road and Cribbon Avenue Street Improvements Project to change the Time of Performance (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried.

[CA] Contract Modification #2 to Contract #6924 between the City of Cheyenne and TC Solutions, LLC, Cheyenne, for Owner's Representative Services for the New Municipal Court Project (General Fund Reserves and Specific Purpose Sales Tax) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #6971 between the City of Cheyenne and Jerry Berggren for the Cheyenne Regional Airport Fountain Partial Restoration Project to extend the deadline (SHPO 56-19-03 and CTF 210-19-S Grants Funds) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7066 between the City of Cheyenne and American Contracting of Wyoming, Cheyenne, for the Cheyenne Regional Airport Fountain Partial Restoration Project to extend the deadline and increase the contract amount (SHPO 56-19-03 and CTF 210-19-S Grant Funds) – referred to Finance Committee.

[CA] Consideration of Bid Modification #1 to Purchase Order #18-112666, Bid #E-25-18 between the City of Cheyenne, and Floyd's Truck Center, Inc., Cheyenne (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$30,000.00).

[CA] Consideration of Bid #E-3-20 for furnishing one (1) new 2019-2020 1-ton regular cab, full size pickup truck, 4x4 with 8-foot box and Fleet work truck package for the Forestry Division (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Request for approval for winery permit holder GrapesNwine, LLC d/b/a Vintages, 309 North American Road, Units 11 and 12, Cheyenne, Wyoming, to sell other wines obtained from the Wyoming Liquor Division for on-premise consumption pursuant to Wyo. Statute §12-4-112 (b) (ii). Motion (per Consent Agenda) carried.

Revenues – Ms. Jones, for clarification, explained it is her understanding that approval for accuracy only is the appropriate action. Comments were made regarding approving accuracy of revenues. Mr. O'Donnell advised he will research if approval to accuracy is the appropriate action.

Appointment of Brittany Wings to the Cheyenne Housing Authority Board. Mr. White moved to approve, seconded by Mr. Case. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Orr who did not vote (mayoral appointment).

Appointments of Alexis Arp, Ashen Doty, Nolan Gerdes, Henry Goertz, Leana Hartwig, Marie Lucas, Emily Lucero, Zoey Lundin, Zoey Martinez, Taylor Merriman-Fish, Lars Quinlivan, Jesse Quist, Silas Sommers, Elizabeth Stump and William Ward to the 2019-2020 Mayor's Youth Council. Mr. Roybal moved to approve, seconded by Mr. White. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Orr who did not vote (mayoral appointment).

Announcement that due to the Veteran's Day holiday and City offices being closed on Monday, November 11, 2019, the regularly scheduled City Council meeting will instead be held on Tuesday, November 12, 2019 at 6:00 p.m. in the Municipal Building, City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming.

Announcement of Public Hearing to be held November 12, 2019 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a bar and grill liquor license application filed with the City Clerk's office for Goalz DH Cheyenne, WY LLC d/b/a Dog Haus, 3838 Atkin St., Cheyenne, Wyoming.

Under other business:

James Johnson commented on and provided reasons to review revenues. Clarification was provided regarding the city's purpose for open review of revenues.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:01 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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